

IN THE HON’BLE HIGH COURT OF DELHI AT NEW DELHI
(CIVIL ORIGINAL JURISDICTION)

Writ Petition No. 123 of 2025

Ravi Kumar.....Petitioner

VERSUS

- 1. The Government of NCT of Delhi
- 2. The Principal, Government School, New Delhi.....Respondents

PETITION UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA FOR
THE ISSUANCE OF A WRIT OF CERTIORARI

SYNOPSIS:

This writ petition is being filed under Article 226 of the Constitution of India by the petitioner who is a government school teacher in Delhi. The petitioner has been arbitrarily suspended from his service without any prior show cause notice, departmental inquiry or opportunity to hear.

The impugned suspension order dated 05.07.2025 is arbitrary, illegal and in violation of the fundamental rights (PART III) under Articles 14 and 21 of the constitution of India. The petitioner has also not been paid his subsistence allowance since his illegal suspension for the last 3 months. The petitioner respectfully submits that the arbitrary actions by the respondents are in complete violation of his fundamental rights and against the rule of law.

Therefore, this petition is filed to seek the quashing of the suspension order, release of the pending subsistence allowance and pass further orders to conduct a proper inquiry in accordance with the law.

LIST OF DATES:

Dates	Particulars
01.01.2020	Petitioner joined service at Government School, New Delhi
03.07.2025	Complaint made by a student against petitioner for misconduct
05.07.2025	Suspension order passed against petitioner without inquiry
10.10.2025	Present writ petition filed to seek relief

MOST RESPECTFULLY SHOWETH:

That the present writ petition is being filed under article 226 of the constitution of India seeking an issuance of appropriate order and direction for quashing of the illegal and arbitrary suspension order dated 05.07.2025 passed by Respondent No. 2.

BRIEF FACTS OF THE CASE:

1. The petitioner was appointed as a government teacher on **01.01.2020** in New Delhi. The petitioner has maintained a clear record through out the course of his employment and service.
2. On **03.07.2025** a complaint was made by a student of the Government School, New Delhi named XYZ accusing that the petitioner has behaved inappropriately and caused misconduct in the classroom. Following the complaint, the Respondent No. 2 has issued a suspension order dated **05.07.2025** without verifying the alleged misconduct or initiating an inquiry.
3. The suspension order was passed without the issuance of any show cause notice which is in complete violation of the Delhi School Education Rules, 1973.
4. Since the suspension, the petitioner has not received any subsistence allowance, depriving him of the basic requirements of his livelihood and survival which are against the spirit of Article 21 of the Constitution of India.
5. The petitioner has made several applications before the respondents in order to reconsider his suspension order and conduct a fair enquiry regarding the complaint in accordance with the established procedure of law, but no response has been received from the respondents despite repetitive applications.

GROUND FOR CHALLENGE:

1. The impugned suspension order has been passed without the due process of law arbitrarily by the Respondent No. 2 violating articles 14 and 21 of the constitution of India.
2. The principles of natural justice have been violated as no opportunity of hearing was given to the petitioner.
3. The actions of the respondents are arbitrary, illegal and mala fide. The suspension order has been passed only to please and satisfy the complainant without proper investigation.
4. The non-payment of subsistence allowance is against the rule of law as it is depriving the petitioner from his livelihood making it difficult for him to survive. In the case of ***Capt. M. Paul Anthony v. Bharat Gold Mines Ltd., (1999) 3 SCC 679***, The Hon'ble Supreme Court of India has held that "*non-payment of subsistence allowance amounts to violation of natural justice, as it curbs the employee's ability to participate effectively in the inquiry.*"
5. The respondents have failed to comply with the provisions enshrined under Rule 10(6) of The Central Civil Services (Classification, Control And Appeal) Rules, 1965, which mandates that the suspension orders must be reviewed within a period of 90 days to ensure fairness.
6. The continued suspension without proper inquiry and investigation amounts to punishment in itself, which is violative and abusive of the established procedure of law.

VIOLATION OF LEGAL AND CONSTITUTIONAL RIGHTS:

1. The arbitrary actions of the respondents have infringed the petitioner’s right to quality and fairness under Article 14 and his right to livelihood under Article 21 enshrined under PART III of the Constitution of India.
2. The illegal suspension without any proper inquiry and investigation amounts to the violation of the principles of natural justice. The petitioner has not been given any opportunity to hear his side which defeats the purpose of *audi alteram partem*, that constitutes as a part of basic structure of the Indian constitution.

PRAYER:

In the light of the above facts and circumstances, it is most respectfully prayed that this Hon’ble Court may graciously be pleased to:

1. Quash and set aside the impugned suspension order dated 05.07.2025 passed by Respondent No.2.
2. Direct the Respondents to release the pending subsistence allowance in favour of the petitioner which is on hold since 05.07.2025 till date.
3. Direct the respondents to conduct a proper and fair departmental inquiry, in accordance with the principles of natural justice and rule of law.
4. Pass such further or other orders as this Hon’ble Court may deem fit to meet the ends of justice.

LIST OF ANNEXURES:

Annexure No.	Description
Annexure A-1	Copy of petitioner’s appointment letter dated 01.01.2020
Annexure A-2	Copy of complaint dated 03.07.2025
Annexure A-3	Copy of suspension order dated 05.07.2025
Annexure A-4	Copy CCS (CCA) Rules, 1965

Dated: 10.10.2025

Petitioner

Ravi Kumar

Through Counsel.

Alshan Husain Shah, Legal Intern,

AAR Attorney Alliance Advocates LLP

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AFFIDAVIT IN SUPPORT OF THE WRIT PETITION

I, Ravi Kumar S/o Mr.X, aged about 40 years, resident of ABC, New Delhi, do hereby affirm and state as under:

1. That I am the petitioner in the accompanying write petition under Article 226 of the constitution of India and I am fully conversant with the facts and circumstances of the case.
2. That the contents of the writ petition have been drafted under my instructions and the same have been read over and explained to me by my counsel.
3. That I have been illegally suspended from my service as a school teacher by the Principal of The Government School, New Delhi without any show cause notice and departmental inquiry which is violative of the Articles 14 and 21 of the constitution of India.
4. That since the date of my suspension I have not been provided with any subsistence allowance as mandated under the CCS (CCA) Rules, 1965, which is causing me and my family various financial hardships.
5. That the cause of action for filling this writ petition has arisen within the ambit of the territorial jurisdiction of this Hon'ble Court.
6. That the I have not filed any other petition in this Hon'ble Court or any other Court seeking same reliefs based on similar facts and circumstances.

DEPONENT

(Ravi Kumar)

VERIFICATION:

I, **Ravi Kumar**, do hereby verify that the contents of the above affidavit are true and correct to the best of my knowledge and beliefs. Nothing has been concealed therein.
Verified at **New Delhi** on this **10th day of October, 2025**.

DEPONENT

(Ravi Kumar)

Through counsel.

Alshan Husain Shah, Legal Intern, AAR Attorney Alliance Advocates LLP